



File No.: EXP202310096

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated 19/08/2024, and based on the following

FACTS

FIRST: On 19/08/2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202310096, by virtue of which administrative fines were imposed on A.A.A. for violations of the GDPR of the following articles:

- 9, in accordance with Article 83.5.a) of the GDPR and classified as very serious for the purposes of prescription in Article 72.1.e) of the LOPDGDD, with a fine of 8,000 euros.
- 30, in accordance with Article 83.4.a) of the GDPR and classified as serious for the purposes of prescription in Article 73.n) of the LOPDGDD, with a fine of 1,000 euros.
- 13, in accordance with Article 83.5.a) of the GDPR and classified as very serious for the purposes of prescription in Article 72.1.h) of the LOPDGDD, with a fine of 6,000 euros.

This resolution, which was notified to the appellant on 19/08/2024, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of 5/12, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), and subsidiarily in Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND:

As proven facts of the aforementioned sanctioning procedure, PS/00363/2023, the following was recorded:

- 1) The private race "X Gomera Paradise Trail" took place on 10 and 11/09/2021, with different modalities and open participation for individuals over 14 years of age, as stated in the Regulation of said race (RC), at <https://gomeraparadise.com/reglamento> (printed version included in the file dated 21/10/2021).
- 2) The official website of the race, according to the defendant: A.A.A. with NIF ***NIF.1, and the RC itself, was www.gomeraparadise.com. To participate in the race, it was necessary to fill out a form through the website in its "registrations" section. The deadline for this was from 14/05 to 15/08/2021 (Articles 7 and 8 of the RC). This completion implied acceptance of the conditions and requirements of the RC (Article 1), informing that it could be modified, rectified, or improved at any time by the organization (Article 24).
- 3) In the RC, in the version obtained for this file, which bears the logo of X TRAIL Gomera Paradise, it was initially specified regarding the data related to COVID-19, in section 14, within "collection of bib numbers," that it was carried out, once registered, from 6 to 10/09/2021, that "the participant must submit a COVID-19 protocol document in which they commit to having complied with the measures stipulated therein," without evidence that this protocol was part of the registration form. It was also indicated that it was organized by GOMESPORT EVENTOS. The RC did not contain any aspect regarding the protection of personal data collected.
- 4) The General Subdirectorate for Data Inspection obtained on 21/10/2021 a printed copy from the screen of the "privacy and data protection policy," with the information that was on the race website www.gomeraparadise.com, located at <https://gomeraparadise.com/politica-privacidad/>, containing the logo of X TRAIL Gomera Paradise, informing about personal data, that:
 - the responsible party for the page and for the collection of data as the "data controller" is A.A.A., who processes the data of "clients and visitors to provide the services requested by users."
 - The headquarters to exercise rights and the option to file a complaint with the AEPD.
 - Regarding the legitimacy of the processing, it was only informed about the products or services offered to the claimant, with the basis for legitimacy of the processing as "Contractual relationship," derived from the purchase or contracting of their services. Regarding the collection and processing of

health data, nothing was indicated.

5) It is evidenced that a few days after the registration period closed, on 19/08/2021, the defendant sent participants a message through the online registration platform of the event (defendant's assertion in previous investigative proceedings on 8/04/2022, with a printed copy of the message submitted as evidence), requesting participants in the race to "provide":

- Certificate of complete vaccination or, failing that, a certificate of having the relevant dose due to having already contracted COVID-19. (the underlined, literal, could refer to having contracted the disease, "must provide" a certificate to that effect).
- Alternatively, with a deadline of 48 hours prior to the celebration of the test to be carried out, a negative PCR or antigen test result.

To submit the aforementioned documents, the race website was enabled: gomeraparadise.com, in the "private participant area," entering with the data provided when registering: assigned registration ID and the email noted when they registered. The deadline set by the defendant for this was from 23/08 to Sunday 5/09/2021. In the case of PCR or antigen tests, it was to be submitted to the organization at the time of collecting bib numbers.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
3/15

6) On 24/08/2021 (as evidenced by a screenshot provided by the respondent on 08/04/2022 in relation to the requested evidence), the respondent sent another message to the participants of the race via the same channel as that of 19/08. The communication informs that the private area for participants is now available to upload the COVID-19 vaccination certificate, "in response to the doubts and/or suggestions we have received: At no time have we stated that the submission of documentation is mandatory or that participants will be removed from the event. This certificate is requested in order to ensure the maximum safety guarantees regarding COVID-19, given the health alert we are experiencing; we believe that the best for everyone is to guarantee the highest level of safety," appealing to the solidarity of all to celebrate events safely and responsibly. In this second communication, participants are informed that the procedure to upload the vaccination certificate or a certificate guaranteeing the presence of antibodies is: access your Private Area:

https://inscripciones.gomesporteventos.com/inscripcion/ix-gomera-paradise/zona_privada/logueo/

7) The space where the collected data was stored had been contracted by the respondent with AVAIBOOK ON-LINE S.L., being the online registration platform for the event, where the data was hosted.

8) In its allegations to the agreement, the respondent justifies the request for health data from the participants in the race related to COVID-19, collected from 23/08/2021 to 05/09/2021, based on obtaining consent, which it considers would enable processing in accordance with Article 9.2.a) of the GDPR. However, it is not evidenced that there was any clause regarding data protection policy, informative clause, or means that explains and informs the participants in the race about what the processing would consist of, the request for their consent, what such consent would entail, its purpose, or how it would be collected, to enable this processing.

9) The respondent indicated in its allegations to the initiation agreement that 1,350 people participated in the race, with 690 people uploading the COVID-19 data certificate on the platform, while there were 660 participants who did not provide a COVID certificate, diagnostic test, or any similar document.

10) It is not evidenced that the respondent informed in any way about this health data processing at the time the data of the affected individuals was collected (23/08/2021 to 05/09/2021) on the privacy policy page of the race www.gomeraparadise.com, owned by the respondent, considering the provision and initiation of health data collection in emails dated 19 and 24/08/2021.

11) The claimant reported on 08/09/2021 that in order to participate in the race "X Gomera Paradise

Trail," personal data associated with the COVID-19 vaccine and recovery certificate from the illness, as well as COVID diagnostic tests (antigen tests and/or PCR) at the participant's choice, are collected.

12) Requested in previous proceedings on two occasions from the respondent, the copy of the activity record of the processing (RAT) in force at the time of the collection of health data related to the claim was not provided until the allegations to the C/ Jorge Juan, 6 www.aepd.es 28001 – Madrid sedeagpd.gob.es

4/15

agreement to initiate the present procedure. The requested RAT in evidence "valid at the time of the date of collection of health data," and submitted includes the RAT of "treatment activity: Management of sports event." It contemplates historical variations without any mark of validity or period of validity or entry into force. It only includes in the three versions submitted, the title placed by the respondent to differentiate it, as follows:

- "RAT valid at the time of the event,"

- "RAT submitted to the AEPD, before its complete review" (in allegations, where it is noted that the existence of DPD is contained, a fact that occurs from 6/2023, continuing to that date referencing in the section of "purpose" the health crisis derived from COVID-19, as well as in legitimization a law on the matter, Law 2/21 of 29/03, and

- "Current valid RAT," as stated by the respondent valid since October 2023. Thus, it does not certify the date of implementation, nor of validity or update in the subsequent ones.

The respondent supports the validity of the RAT at the date when the health data was collected, from 24/08/2021 to 5/09/2021, with the title: "RAT valid at the time of the event" with the mere declaration that the document was valid since 17/08/2021, being the other two versions of this.

THIRD: The appellant submitted on 19/09/2024, to this Spanish Agency for Data Protection, a request for reconsideration, basing it, essentially, on:

1- Reiterates what was stated in allegations to the agreement to initiate the sanctioning procedure, that the users who provided their health data did so with "express, unequivocal, free, and informed consent that uploaded the certificate to the platform," complemented by the intention of the responsible party to safeguard the vital interests of the data subjects. However, it adds that: "Regarding the validity of the consent provided by the data subjects, art.9 GDPR," "The processing of health data does not require the explicit consent request in all cases. It is possible when seeking to protect the vital interests of the data subjects, art. 6.1.d of the GDPR."

Moreover, it reiterates that such data can be processed without such consent, as they are necessary for reasons of public interest in the field of public health, as expressed in recital 54 of the GDPR.

It adds that it submitted DOCUMENT II, entry registration Government of Canary Islands, dated 14/08/2021 (provides a copy, not submitted in the procedure) for the celebration of the event GOMERA PARADISE TRAIL from 9 to 11/09/2021 and DOCUMENT III (provides a copy) "Contagion Prevention Plan," -not submitted during the procedure- "before the Canary Health Service prior to the celebration of the event," "where it was already indicated the processing of this type of data," and it was "this organization that gave its consent authorizing the celebration of the event as provided in ANNEX IV," (provides a copy) "considering therefore that a data processing proportional to the circumstances of the moment was being carried out." "As a consequence of the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/15

The receipt of such authorization is when the possibility of uploading the COVID certificate opens up."

In DOCUMENT III: "Contagion Prevention Plan," to be submitted by the event organizer, it includes, among other elements, not very legible, especially the open questions: as organizer GOMESPORT EVENTOS, from 09 to 11/09/2021, in an outdoor space, with a maximum capacity of participants across all modalities of 1200, event without an audience. In the section on the number and description

of critical points at the event venue that may facilitate close contact due to the lack of maintenance of interpersonal safety distance, the cross marked in the box of "no critical points" is noted. In the question "implementation of a register that allows the identification of attendees and preservation for at least 30 days," it is stated that yes.

Regarding the requirement of any vaccination document or certification thereof, it is indicated in point B.9, despite the difficulty of reading the entire document, "observations of the holder, promoter, or organizer" "that will be required by the event organization, complete vaccination schedule or, failing that, antigen test..."

ANNEX IV was already in the file, being the document from the Canary Health Service that does not comment on anything but preventive measures, with no reference to vaccination or antigen tests.

The appellant reiterates that the provisions of the Government Agreement of the Canary Islands adopted in the session of 5/08/2021 were applicable, by which the update of the preventive measures established by the Government Agreement of 19/06/2020 was approved, to address the health crisis caused by COVID-19, once Phase III of the Plan for the transition to a new normality was surpassed, ending the validity of the measures specific to the state of alarm, in its Annex, section 3.15,

"Celebration of non-professional, professional, and federated sports events that take place in the Canary Islands," where it allows for the inclusion of necessary measures to maintain interpersonal safety distance or, failing that, the use of alternative protective measures, as proposed and accepted by the respondent.

The appellant points out that such alternative measures were to request the health certificate referred to in the file.

"In this regard, section g) of article 9.2 of the GDPR establishes that special categories of data may be processed if the processing is necessary for reasons of an essential public interest, based on Union Law or that of the Member States, which must be proportional to the objective pursued, essentially respect the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject; a circumstance that occurred in the year 2021 due to the pandemic caused by COVID-19 (See Resolution of Archiving of Proceedings with file number EXP202102792)."

"Additionally, the data controller acted based on the interest in protecting the vital interests of the affected parties, as well as to fulfill a mission based on the public interest, as has been indicated in this document."

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
6/15

It adds that the voluntary request for health data was based on the belief that the actions taken were correct regarding the authorization of the celebration by the Service.

2- "Regarding the infringement of Article 30 of the GDPR," the appellant states that Article 30 of the GDPR does not establish that any initial document of the Record of Processing Activities must be preserved, only that "paragraphs 1 and 2 shall be recorded in writing, including in electronic format." In this case, the GDPR is clear, indicating formats, but in no case does it refer to the need to keep a copy of the initial RPA. In this case, applying the strict sense of Article 30, it develops the minimum content and format, and the one provided "included a change control sheet."

It indicates that "a historical record of the extracts was provided, outlining the versions of the RPA: the initial one that was in force at the time of the event, the one that was modified at the time of the appointment of the DPO, and the RPA currently in force, the version of which was approved in October 2023."

It has also stated that it is unknown why, despite having provided the documents, including "the version control of the RPA, it is still not sufficient to be reliably accredited."

3- "Regarding the breach of the information duty of the controller, Article 13 of the GDPR"

The appellant states that the Spanish Agency for Data Protection argues that "when the regulation of the race was approved, the collection of the controversial data was not foreseen, making it impossible

to inform in the registration form."

However, contrary to what the Agency states, which overlooks the submitted documents, it is in the regulation itself where, in the first instance, information about the collection of this category of personal data is provided. Therefore, although it is true that it was not a processing that was intended to be carried out unchangeably, information about this processing was provided from the registration form, pending any possible indications from the Canary Health Service.

It reiterates the allegations against the proposal of:

- "As has already been demonstrated, the official page of the event was www.gomeraparadise.com, as indicated in the regulation of the race. However, and due to the fact that the data controller had two websites at that time, registration was carried out from www.gomesporteventos.com, although subsequently access was made from www.gomeraparadise.com. It is necessary to take into account the information provided through these legal texts, as this constitutes a large part of the information provided to the participants."

- "To verify the information that the controller provided to the participants, the legal texts included on the website www.gomesporteventos.com were submitted as evidence."

- "As we have mentioned in previous writings, it follows from the regulation of the race that the data controller is GOMESPORT EVENTOS, as it states that the event 'is organized by GOMESPORT EVENTOS,' which is also evident 'from the registration form' and 'from the emails sent on various occasions to the participants of the event.'"

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/15

It is considered that this is confirmed because in the emails sent to the participants on 19 and 24/08/2021, the entity is also mentioned in the footer of the communications with the wording: "You have received this email because you registered for an event organized by GOMESPORTEVENTOS." It indicates that, although the link to the registration form for the race that contained an informative clause was removed, in the email of 24/08/2021, the responsible party, the type of data to be processed, the purpose of the processing, the voluntary nature of the provision of health documents, and how to obtain more information about the rights of the participants were clarified again.

- "Regarding the possibility of exercising rights in data protection matters, it was explicitly stated in the privacy policy included on the responsible party's website, as well as implicitly in the emails sent to the participants, where it was indicated that 'please remember that if you have any questions about this email, you should send them to info@gomeraparadise.com.'"

- It considers that this information already constitutes a first layer of information, notifying who is responsible for the processing, as well as the type of data to be collected (Article 14 of the Race Regulation) and the purpose, which is none other than the registration and management of the event and to ensure maximum security guarantees regarding COVID-19. "This responds to some requirements of Article 13.1 of the GDPR, which are later expanded upon by the privacy policy incorporated on the website of the event organizer Gomesport Eventos."

It estimates that, despite not providing the information in a single text, it should be considered fulfilled, with evidence found in:

- "The Race Regulation - Article 14 in relation to Article 24,

- Privacy policy of the pages gomesporteventos.com and gomeraparadise.com.

- Clause inserted in the registration form,

- Emails sent to the participants,

- The privacy policy of AVAIBOOK provided, which constantly refers to the responsible party, making it clear that GOMERA PARADISE is the responsible party for the processing."

"To reinforce what has already been stated, through the legal texts of Avaibook, the user is referred to the content on the website of the event manager, that is, GomeSport Eventos, where at all times the pertinent information was included in the version in force at the time of the event, already provided by this party and that has been completely overlooked by the Spanish Agency for Data Protection in all its

proven facts by indicating that the event was organized by GomeSport Eventos.”

“Therefore, in any case, the imposition of a minor infringement should be considered, as there was no omission of the duty to inform, but rather a breach of the principle of transparency of information or the right to information of the affected party for not providing all the information required by Articles 13 and 14 of Regulation (EU) 2016/679 (See Article 74.a) of the LOPDGDD).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/15

The above is evidenced through the analysis of what is established in Article 11.2 of the LOPDGDD.

The appellant considers that the classification does not correspond to the proven facts, qualifying the violation as very serious, and indicating throughout the resolution that the duty of information has been fulfilled, only that it has not occurred in a unitary manner, and mentions the ruling of 23/04/2019, appeal 88/2017, without identifying the Court/Judge or judicial venue of origin or the relationship it bears with the case.

4 - Reiterates what was stated in the proposal, that he acted in good faith and with the intention of acting exhaustively and rigorously in accordance with the guidelines and criteria of the health authority at a time of pandemic and health crisis, in which the intention at all times was to organize a sporting event without putting any participant or their families and relatives at risk.

LEGAL GROUNDS

I

Competence

The Presidency of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of the LPACAP and Article 48.1 and 2 of Organic Law 3/2018, of 5/12, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD).

II

Response to the allegations presented regarding the processing of health data

Regarding the assertion that there was a legal basis lifting the prohibition on the processing of health data, now referring to the grounds of Article 6.1.d) of the GDPR, which indicates regarding the lawfulness of processing: “1. Processing shall be lawful only if at least one of the following conditions is met:

d) processing is necessary to protect the vital interests of the data subject or of another natural person.”

In this regard, it should be emphasized that the resolution does not sanction the appellant for lacking a legitimizing basis under Article 6 of the GDPR, and that this ground is not capable of lifting the prohibition on the processing of health data in this case, since it would have to fall within one of the situations referenced in Article 9.2.b) to j). It is noted that the most similar provision could be Article 9.2.c) of the GDPR, which states: “processing is necessary to protect the vital interests of the data subject or of another natural person, in the event that the data subject is not physically or legally capable of giving consent.” However, it is noted that the conditions for the processing to be necessary for that purpose are not met, since it is not established that the participants were not capable of giving their consent, and as practice has shown, the necessity of the processing is not evidenced when there were participants who did not provide any health documentation nor...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/15

vaccination certificate, and participated in the event, thus making such treatment unnecessary.

Regarding the accreditation that the appellant had consent, as stated in the sanctioning procedure, it is motivated that it does not concur in the legal basis VII.

Now, new allegations are added to support that there was a cause that enabled the processing of health data, with new contradictions that reveal the lack of accreditation of the same. Since the explicit consent that he states in the sanctioning procedure as an exception to the prohibition of processing health data does not concur, as determined in the aforementioned legal basis, he now adds the exception of Article 9.2.g) of the GDPR: "the processing is necessary for reasons of substantial public interest, based on Union or Member State law, which must be proportional to the objective pursued, respect essentially the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject."

It must be estimated that this circumstance is based on the necessity of processing the data for reasons of substantial public interest.

The contradiction is revealed because the appellant voluntarily allowed participants to participate depending on whether each one provided health documentation or not. This, what it palpably reveals is that the note of "necessity" was not even met, which exempts from analyzing even the substantial public interest, in an organizer of a private event. This means, moreover, that the data controller does not hold or is invested in this case with an official authority nor is it accredited to carry out a task of public interest, aspects that are typically attributed in law or regulations.

The same can be noted with the mentioned "processing necessary to protect the vital interest of the data subject or another natural person, in the event that the data subject is not capable, physically or legally, of giving consent," Article 9.2.c) of the GDPR, as the absence of any type of capacity of the affected participants in the race to give their consent is not accredited.

Furthermore, the authorization for the celebration of the test by the Canary health authority does not even mention any aspect of vaccination or related health documentation, which only indicated the measures for sporting events.

All these elements contribute to the fact that this allegation cannot be taken into account.

III

Response to the allegations presented regarding the infringement of Article 30 of the GDPR.

Regarding the appellant's allegation concerning the infringement of Article 30 of the GDPR indicating that he provided a history of the extracts, in the RAT called "management of sporting event," with the data controller "A.A.A.," and resulting that the aforementioned document was requested on two occasions before the agreement to initiate the procedure.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

10/15

sanctioning, it should be specified that it indicates Recital 82 of the GDPR: "To demonstrate compliance with this Regulation, the controller or the processor must maintain records of the processing activities under their responsibility." It is indicated that the RAT will be an instrument to demonstrate compliance with the Regulation, reflecting the reality of the processing activities and cooperating with the Supervisory Authority, making them available if required for that purpose.

It should be noted that it was finally submitted on 29/07/2023 in allegations to the initiation agreement of the sanctioning procedure, including in the version the reference in the heading to the existence of the DPO, who was appointed on 29/06/2023. In evidence, the respondent stated that they provided the updated and current version as of that date, indicating that there are two other versions of the RAT.

The initial one, which was in force at the time of the event, since 17/08/2021, the one that was modified at the time of the appointment of the DPO provided in allegations, and the RAT currently in force, whose version was approved in October 2023, without specifying the exact date as it does not appear in any document. Therefore, the date of validity or modification, which is what varies, cannot be known, serving no purpose for the purposes of a record that is ordered, successive, chronological reflecting the changes in it, which is why the aforementioned obligation is established. To this end, it should be indicated that none of them can be distinguished at first glance other than by the title that the respondent gave to each one, the one in force at the date, the one currently in force in October 2023, or the one in which the DPO was appointed, without any evidence of a successive or consecutive

order nor knowing their order of validity.

Furthermore, it should be indicated that, with the name and nature of the record, it must include, by its purpose, any variation, modification of the elements related to or referred to the processing activity, so that they faithfully respond to their evolution or periodic update, contemplating the phases or requirements that occur regarding it, a record that must be maintained over time. Only in this way is the guaranteeing sense that the GDPR gives to it understood in order to constitute useful means to support the analysis of the implications of any data processing, whether it exists currently or is planned for the future.

As it has not been demonstrated that they were provided complete, updated, and ordered, since there is no way to know the approval date and the validity date of any of them, such records cannot fulfill the objectives for which they are required, being substantial elements, and that in this case the provision of the same applied as it collected and processed special category data such as COVID vaccination data.
IV

Response to the allegations presented regarding the infringement of Article 13 of the GDPR.

Regarding the infringement of Article 13 of the GDPR attributed, the appellant begins by indicating that since the data controller had two websites, the registration for the race was carried out "from" www.gomesporteventos.com, although "subsequently" access was made from www.gomeraparadise.com, and that the legal texts included on the page www.gomesporteventos.com were submitted in evidence. In the response in evidence of the procedure, the respondent indicated that the information on data collection was found on the registration screen of [gomesporteventos](http://gomesporteventos.com) and that this informative layer was incorporated into the registration form, being necessary.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

11/15

accept the privacy policy for such registration, although it did not retain said registration screen or the form.

In ANNEX I, provided in said evidence, privacy policy www.gomesporteventos.com, apart from not containing versions, dates, or any other indication that reveals the moment it is offered to interested parties, is included as indicated to the appellant as the data controller, and the contact of the DPD established in June 2023 is indicated.

On the other hand, it must be taken into account that the registration period for the race was from 14/05 to 15/08/2021, and that according to what is also deduced from the messages to the already registered participants sent on 19 and 24/08/2021 (they had the registration ID and the email they provided when formalizing the registration and already had an account as registered participants), they could access said website to submit health data starting from 23/08/2021.

Regarding the requirement for health data, the appellant did not decide from the beginning of the registration period to require the aforementioned health data, with the first reference to its requirement being the sending of the email on 19/08/2021. Thus, the appellant does not prove that, as of the start date of the registration, information was provided in said section of the form regarding the content set forth in Article 13 of the GDPR, when in fact it was decided later to require the data. The privacy policy of the [gomesporteventos](http://gomesporteventos.com) site does not carry any date of validity or version, nor is the form provided, and it is modifiable as evidenced by the fact that variations occur without introducing dates or versions, as when the DPD is established.

Additionally, it is supported by the fact that the request to the Canary health authority for authorization to hold the event was made by the appellant on 14/08/2021, receiving a response on 28/08/2021, in a document dated by the Canary authority on 23/08/2021, indicating, as stated by the appellant, that after obtaining said authorization was when the appellant decided to request the health data, not before, although it could have been planned. Therefore, it is not credible that the registration form for the event included information about the anticipated collection of health data, and, in fact, it is also not mentioned in the race regulations, and thus as such in proven facts.

Regarding whether information was provided at a later date, considering that in the communications of

19 and 24/08/2021 directed to those already registered, they were only informed that from 23/08 to 5/09 they should upload the certificates and that it was voluntary, it is also not proven that the details of Article 13 of the GDPR, which is understood to be violated, were communicated.

Furthermore, in the response to the request in prior proceedings, on 08/04/2022, the appellant attributed to themselves the status of data controller and that all registrations and data are hosted on an online platform for event registrations, which is governed by the privacy policy, providing only the “rules of use and conditions accepted when making a registration, with AVAIBOOK.”

Likewise, in said proceedings, information was requested regarding what was provided to interested parties about data processing, without obtaining more response than the aforementioned “RULES OF USE AND CONDITIONS ACCEPTED WHEN MAKING A REGISTRATION,” and without making any allegations when the same violation of Article 13 was imputed in the file PS/291/2022, noting that allegations were received on 30/06/2023 to the proposal intervening the newly appointed DPD. In the same, nothing is indicated about the clauses of the privacy policy on gomesporteventos, and it is stated that “with the intention...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

12/15

Corrective action, we note that an updated informative clause of accessible understanding has already been incorporated for the interested party on the platform. In it, one can read clearly and simply all the details regarding the protection of the requested data. While this has been done with the intention of improving the management of the claims and the events organized, there has always been a spirit of clarity and simplicity in communications regarding the data of the participants.

Furthermore, the information from the email dated 08/19/2021 indicates that “the format to be carried out will be through the website www.gomeraparadise.com, where the organization will enable a private area for the participant.”

In the email dated 08/24/2021, it is indicated by the appellant that the private area is actually https://inscripciones.gomesporteventos.com/inscripcion/ix-gomera-paradise/zona_privada/loggeo/, without this constituting any indication that the information had been effectively provided.

Regarding the assertion that the data controller was GOMESPORT EVENTOS, as the race regulations indicate that it is organized under such name or entity, it should be noted that according to the documentation, and as stated in the proven facts, the data controller for the health data requested for the race was the appellant. Moreover, it is contradictory not only with the information and data contained in the file but also with what was previously stated by the appellant himself, that the data controller, the appellant, then had two websites, one of which was gomesporteventos.com. A website cannot be the data controller; in this case, it would be its owner if it meets the requirement that “alone or together with others, determines the purposes and means of the processing” (art. 4.7 of the GDPR), so the status of organizer of an event does not necessarily coincide with the condition of data controller. However, this condition is revealed in this case because the race regulations themselves state that the appellant was the data controller, and even in the versions of the RAT that have been provided, as well as in the informative clauses contained on the gomesporteventos site, ANNEX I, titled “Privacy Policy www.GOMESPORTEVENTOS.COM,” which was submitted as evidence by the respondent, where the appellant was also listed as the data controller. The appellant, as the data controller, must be able to demonstrate, whether using one page or the other, that he complied with the requirement set forth in Article 5.2 of the GDPR:

“The data controller shall be responsible for compliance with the provisions of paragraph 1 and shall be able to demonstrate it (‘proactive responsibility’).”

It is also emphasized that, in the race regulations, nothing was stated about the collection of vaccination data or antigen tests, so it cannot be inferred that such collection was already informed therein. The information from the emails sent to the participants provides partial information on some

aspects, which is neither complete nor corresponds with the unified information understood in Article 13 of the GDPR, such as that “if there are any doubts about the email” to obtain more information by providing an email address, which does not serve as a possible means to exercise rights in data protection.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

13/15

The principle of transparency reflected in Article 5.1.a) of the GDPR is materialized, according to Recital 39 of the GDPR, in the obligation of the data controller to inform the data subjects about the processing of their personal data in a concise, easily accessible, and understandable manner, as stated in Recital 58 of the GDPR, and to inform them of the existence of the processing operation and its purposes. In accordance with Article 12.1, “The data controller shall take appropriate measures to provide the data subject with all the information referred to in Articles 13 and 14 of the GDPR,” in a concise, transparent, intelligible, and easily accessible form, using clear and plain language. The guidelines of the Article 29 Working Party on transparency under the GDPR, adopted on 29/11/2017, last revised and adopted on 11/04/2018, indicate in paragraph 26 that the information must be provided at the time when the personal data is obtained. In this case, there was a registration period for the event from 14/05 to 15/08/2021, during which an ID was obtained as a registrant, and the participants provided an email address with which the appellant communicated the emails of 19 and 24/08/2021, without it being evidenced that at the time of collecting the health data that was voluntarily communicated, the data controller informed about the complete content of Article 13 of the GDPR.

Furthermore, regarding the comparison with the judgment cited to understand the fulfillment of such obligation, dated 23/04/2019, appeal 88/2017, a search in jurisprudence could lead to the judgment of the National Court, Administrative Litigation Chamber, Section 1, dated 23/04/2019, appeal 88/2017. In this judgment, it must be established that the infringements attributed in the two cases are different, as the judgment refers not to a failure to inform about the collection of data, but to a breach of the duty of confidentiality in the processing of personal data to the internet search engine GOOGLE, as provided by Article 10 of the LOPD, and the reasons for its filing have nothing to do with what happened in the present case.

V

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

VI

Late Resolution

Due to operational reasons of the administrative body, therefore not attributable to the appellant, as of the date of this document, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

In accordance with the provisions of Article 24 of the LPACAP, the effect of administrative silence in the procedures for challenging acts and provisions is dismissive.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/15

Nevertheless, and despite the time that has passed, the Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their initiation form, as provided by Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

Having regard to the cited provisions and others of general application,

the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection issued on 19/08/2024, in file EXP202310096.

SECOND: TO NOTIFY this resolution to A.A.A.

THIRD: To warn the sanctioned party that the imposed sanction must be paid once this resolution is notified, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of 29/07, in relation to Article 62 of Law 58/2003, of 17/12, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period.

If the date of notification falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of 13/07, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

180-21112023

Olga Pérez Sanjuan

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es